

26STLC00280 26STLC00280

County: los-angeles

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Case Number: 26STLC00280 Hearing Date: September 28, 2026 Dept: 26

TENTATIVE

RULING:

Plaintiff Westlake Services, LLC dba Westlake Financial

Services' (1) Motion to Compel Responses to First Set of Special

Interrogatories; Request for Monetary Sanctions; and (2) Motion to Compel

Responses to First Set of Requests for Production of Documents; Request for

Monetary Sanctions, are granted.

Defendant KCK-Automotive Incorporated aka KCK Auto Sales Aka

KCK Automotive is ordered to serve verified responses without objections to the

Special Interrogatories, Set One, and Request for Production of Documents, Set

One, within 20 days' service of this order. Defendant KCK-Automotive

Incorporated aka KCK Auto Sales Aka KCK Automotive is also ordered to pay

Plaintiff's counsel sanctions of \$1,073.82 within 20 days' service of this

order.

Analysis:

Plaintiff Westlake Services, LLC dba Westlake Financial

Services ("Plaintiff") served Special Interrogatories, Set One, and Requests

for Production of Documents, Set One, on Defendant KCK-Automotive Incorporated aka

KCK Auto Sales Aka KCK Automotive ("Defendant KCK-Automotive") on February 23,

2026. (Motions, Aposhian Decl., Exh. 2.)

Despite a meet and confer effort, Defendant KCK-Automotive did not timely serve

verified responses to the discovery requests. (Id. at ¶¶5-12 and Exhs. 3-6)

Plaintiff filed the instant (1) Motion to Compel Responses to First Set of

Special Interrogatories; Request for Monetary Sanctions; and (2) Motion to

Compel Responses to First Set of Requests for Production of Documents; Request for Monetary Sanctions, on July 30, 2026. Defendant KCK-Automotive filed oppositions on September 15, 2026 and Plaintiff filed a joint reply on September 18, 2026.

There is no requirement for a prior meet and confer effort before a motion to compel initial responses can be filed. (Code Civ. Proc., §§ 2030.290, 2031.300.) Further, the motions can be brought at any time after the responding party fails to provide the responses. (Code Civ. Proc., §§ 2030.290, 2031.300.) In the oppositions, Defendant KCK-Automotive admits that the discovery responses were not timely served. (Opp., Sari Decl., ¶3.) It served responses after receipt of the instant Motions, on August 20, 2026. (Id. at ¶¶6-7 and Exh. A.) The oppositions cite *City of Los Angeles v. Superior Court* (2017) 9 Cal.App.5th 272, for the contention that the instant Motions are now moot, but the case makes no such holding. Instead, the Court of Appeals examined whether the Civil Discovery Act applies to proceedings under the California Public Records Act. (*City of Los Angeles v. Superior Court* (2017) 9 Cal.App.5th 272, 275.) Based on Defendant KCK-Automotive's failure to timely respond to the propounded discovery, Plaintiff is entitled to an order compelling service of verified responses to the discovery requests without objections. In its reply, however, Plaintiff drops the request to compel responses and now only seeks sanctions. (Reply, p. 5:18-19.)

Plaintiff moves for sanctions pursuant to Code of Civil Procedure sections 2023.010 and 2023.030. In *City of Los Angeles v. Pricewaterhousecoopers, LLP* (2024) 17 Cal.5th 46, the Supreme Court observed:

It is already well-established that a court may not rely on [Code of Civil Procedure] section 2023.030 to override the limitations prescribed by any other applicable sanctions provision in the [Civil Discovery] Act. A court may invoke its independent authority to impose sanctions under sections 2023.010 and 2023.030 only when confronted with an unusual form of discovery abuse, or a pattern of abuse, not already addressed by a relevant sanctions provision. And where it invokes that authority, it is constrained by the long-settled rules generally governing the imposition of discovery sanctions under the Act.

(*City of Los Angeles v. Pricewaterhousecoopers, LLP* (2024) 17 Cal.5th 46, 74-75.) The moving statutes, Code of Civil Procedure

sections 2030.290 and 2031.300, make sanctions available when a party unsuccessfully makes or opposes a motion to compel responses. (See Code Civ. Proc., § 2030.290, subd. (c); § 2031.300, subd. (c).) The Court finds that Defendant KCK-Automotive's oppositions are not warranted. Defendant KCK-Automotive contends that its failure to respond to the discovery was a calendaring error, but does not explain why it did not serve responses after the deadline to respond was extended, nor why it failed to respond to Plaintiff's meet-and-confer letter dated May 6, 2026. (See Motion, Aposhian Decl., Exh. 4.) Instead, Defendant KCK-Automotive waited another three months to serve responses on August 20, 2026 and unjustifiably opposed the instant Motions. Therefore, Plaintiff is awarded sanctions in the reduced amount of \$1,073.82, based on two hours billed at the reduced hourly rate of \$500.00, plus \$73.82 in costs. (Motion, Aposhian Decl., ¶13.)

Conclusion

Plaintiff Westlake Services, LLC dba Westlake Financial Services' (1) Motion to Compel Responses to First Set of Special Interrogatories; Request for Monetary Sanctions; and (2) Motion to Compel Responses to First Set of Requests for Production of Documents; Request for Monetary Sanctions, are granted.

Defendant KCK-Automotive Incorporated aka KCK Auto Sales Aka KCK Automotive is ordered to serve verified responses without objections to the Special Interrogatories, Set One, and Request for Production of Documents, Set One, within 20 days' service of this order. Defendant KCK-Automotive Incorporated aka KCK Auto Sales Aka KCK Automotive is also ordered to pay Plaintiff's counsel sanctions of \$1,073.82 within 20 days' service of this order.

Moving party to give notice.